

SENATE No. 540

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve preventing the discharge of radioactive materials.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/12/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>5/7/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>10/23/2025</i>

SENATE No. 540

By Mr. Fernandes, a petition (accompanied by resolve, Senate, No. 540) of Dylan A. Fernandes that provisions be made to examine and report on the potential negative environmental and economic impacts of radioactive materials. Emergency Preparedness and Management.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve preventing the discharge of radioactive materials.

1 **Resolved**, (a) The Massachusetts Department of Environmental Protection in consultation
2 with the Massachusetts Department of Public Health shall examine and report on the potential
3 negative environmental and economic impacts caused by the discharge of spent fuel pool water,
4 including discharge by any means or methods that increase the rate of evaporation, of any
5 materials created as a waste product of nuclear energy from spent fuel pools, including, but not
6 limited to, processed water or any other liquid with elevated levels of radioactivity, including,
7 but not limited to, tritium or boron, associated with the decommissioning of the nuclear power
8 plant.

9 (b) In creating its report, the Massachusetts Department of Environmental Protection in
10 consultation with the Massachusetts Department of Public Health: (i) shall examine and
11 investigate the potential environmental and economic impacts of said discharge, including
12 discharge by any means or methods that increase the rate of evaporation; (ii) shall analyze the
13 impacts to consumer perception of the discharge of spent fuel wastewater on the fishing,
14 aquaculture, tourism, restaurant industries and other sectors deemed appropriate by the

commission; (iii) shall undertake regular monitoring of the land, air, and water to determine the pollution levels created by said discharge, including discharge by any means or methods that increase the rate of evaporation; and (iv) shall make recommendations on measures to mitigate or avoid potential negative impacts on such industries.

(c) There shall be no discharge, including discharge by any means or methods that increase the rate of evaporation, of spent fuel pool water, any materials created as a waste product of nuclear energy from spent fuel pools, including, but not limited to, processed water or any other liquid with elevated levels of radioactivity, including, but not limited to, tritium or boron into the waters of the commonwealth until 90 days after the Massachusetts Department of Environmental Protection in consultation with the Massachusetts Department of Public Health issues its report.